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No. 107 of February 22, 2024

THE GUARANTOR FOR THE PROTECTION OF PERSONAL DATA

IN THE meeting held today, attended by
Prof. Pasquale Stanzione, President, Prof.
Ginevra Cerrina Feroni, Vice President, Dr.
Agostino Ghiglia and Attorney Guido Scorza, members, and
Counsel Fabio Mattei, Secretary General;

HAVING REGARD TO Regulation (EU) 2016/679 of the European Parliament
and of the Council, of April 27, 2016 (hereinafter, "Regulation");

HAVING REGARD TO the Code regarding the protection of personal data, containing provisions for
the adaptation of the national legal system to Regulation (EU) 2016/679 (Legislative Decree of June
30, 2003, No. 196, as amended by Legislative Decree of August 10, 2018, No. 101, hereinafter
"Code");

HAVING EXAMINED the documentation on file;

HAVING REGARD TO the observations made by the Secretary General pursuant to Article 15 of the
Guarantor's Regulation No. 1/2000;

REPORTING Prof. Ginevra Cerrina Feroni;

PREMISED

1. The complaints submitted.

On October 24, 2022, some employees of Airone
società consortile a r.l. submitted a complaint
to the Authority, alleging that, starting from February 2022, in order to access the construction site
located in Ardea, where the employees' work activities take place, and to verify their presence at the
workplace, it was necessary to use a biometric detector based on facial recognition.
According to the documentation, including photographic evidence, attached to the complaints, the
processing would have been carried out using the device "Face Deep 3 – Smart Face Recognition
System," produced by Anviz Global. It was claimed that the processing of biometric personal data
would be "illegitimate," also considering that the purpose of the same "could equally be achieved by
means less invasive of the worker's personal sphere."

2. The investigative activity carried out.

The Authority delegated the Special Privacy and Technological Fraud Unit of the Guardia di Finanza to
carry out inspection checks pursuant to Articles 157 (Request for information and presentation of
documents) and 158 (Checks) of the Code. During this delegated activity, inspections were carried out,
among others, at the Ardea construction site (January 19, 2023), against L'Igiene Urbana Evolution
s.r.l. (January 26 and 27, 2023), against Airone società consortile a r.l. (February 16, 2023), against
DM Technology s.r.l. (May 30, 2023), and against Unica s.r.l.s. (May 30, 2023).

On January 19, 2023, the Unit, together with the Authority's staff, went to the construction site located
in Ardea, where the following statements were recorded:

"within the industrial site of storage operate the following companies: L'Igiene Urbana Evolution s.r.l.,
Airone società consortile a r.l., Blue Work s.r.l., which operate as ATI for the management of waste of
the Municipality of Ardea" (inspection report 19/1/2023, p. 2);

"within an adjacent room to the vehicle park, there is a device for recognizing employees based on
facial biometrics [...]. The system is used for attendance detection, by about 63 employees of the
companies [operating at the construction site] plus any seasonal or temporary substitutes" (report

cited, p. 3);

"the registration phase of employees, carried out over a period of several months, was done by entering the employee code (ID) associated with the name, based on a list provided by the company itself. Once this ID was entered, the recognition of the employee's face occurred [...] and the system validated the registration" (report cited, p. 3);

"in the room where the device is present, the sign-in sheets are also always available, which are used as an alternative to facial recognition, in case of malfunction of the device" (report cited, p. 3);

during the verification activity, the recorders verified that "the device is functioning and connected to the network [...]. By accessing with the Admin credentials, as reported in the user manual and not modified during installation, the data related to the timestamps and the user registry were exported, and a backup of the internal database was made" (report cited, p. 3);

access was also made to the JuniorWeb application, "through which the attendance of employees is managed, as recorded via the facial recognition device. Exports of the registries were made, including those of dismissed employees, and it was verified that the system indicates 3 additional companies (DMT, IGNEVO, UNICA srl) and 17 additional cost centers" (report cited, p. 3);

"the companies managing the system are the three previously indicated, part of the ATI and [...] the system was installed by Igiene Urbana Evolution" (report cited, p. 4).

On February 16, 2023, during the inspection checks carried out at the registered office of Airone società consortile a r.l., the aforementioned company stated that:

the Company "was created in March 2021 by Blu Work and Igiene Urbana Evolution [...] for the management of the Ardea construction site" (inspection report 16/2/2023, p. 2-3);

considering that the sole director of the Company

has represented that he is also the administrator of Blu Work, "the elements provided [...] regarding Airone also apply to Blu Work" (minutes cited, p. 3);

currently "Blu Work employs 13 personnel units at the Ardea site and 4 personnel units engaged in other functions" (minutes cited, p. 3);

"Igiene Urbana Evolution [...] has arranged the system and initiated the necessary treatments for personnel management, exclusively. Through the installed systems and collaboration with the company Unica, the attendance sheet for all employees of the companies operating at the site is prepared, indicating the personnel's hours, from which the payments are calculated, including for the workers of Airone and Blu Work" (minutes cited, p. 3);

"Airone and Blu Work do not consider themselves holders [...] of the processing and [are not] able to accurately state the date of activation of the system and to describe the technical characteristics and details of its operation" (minutes cited, p. 3);

the companies Airone and Blu Work "operate only at the Ardea site and have not installed biometric detection devices at other sites" (minutes cited, p. 3);

"currently the biometric detection device is not operational [...]. Therefore, the company together with Blu Work has restored attendance detection through [...] signature sheets" (minutes cited, p. 4);

the aspects related to the installation of the devices, the designation of data processing managers, and the preparation of an impact assessment pursuant to Article 35 of the Regulation "have been managed by Igiene Urbana Evolution" (minutes cited, p. 4);

regarding the information to be provided to the data subjects pursuant to Article 13 of the Regulation, this has been provided orally, given that both Companies have not provided the information in writing regarding the processing of biometric data (minutes cited, p. 4);

the designation of a data protection officer "is in the process of [being] formalized" (minutes cited, p. 4-5);

the register of processing activities has not been established (minutes cited, p. 5);

"the management of payroll for personnel is carried out, [...] for the employees of Blu Work [by the associated firm Marzella and Puccianti]"; regarding the related processing, the designation of a data processing manager has not been made in favor of the associated firm Marzella and Puccianti (minutes cited, p. 5).

On January 26, 2023, during the inspection carried out at the administrative headquarters of Igiene Urbana Evolution s.r.l., the latter declared that:

the biometric system was activated “in December 2021 (first clock-in on December 27, 2021)” (minutes cited, p. 3);

“within the site there are other employees of Blu Work and Airone” (minutes cited, p. 3);

“the company formalized in March 2021, with Unica srls, the purchase of attendance detection devices, which were physically installed by DM Technology srl under a previous service and maintenance contract” (minutes cited, p. 4).

On January 27, 2023, inspection activities continued at the administrative headquarters of Igiene Urbana Evolution s.r.l. On this occasion, the latter further declared that:

“the devices are installed to carry out attendance detection through one-to-many comparison of the biometric facial imprint of employees and [...] Unica srls provided the user manual for the same.

Subsequently, the technician from DM Technology provided training on the use of the device to the site manager” (inspection minutes 27/1/2023, p. 2);

during access to the Junior Web system, with Admin profile, “the attendance report for December 2022 was viewed, including employees from various sites (indicated as CDC, cost centers). [...] of all the cost centers displayed, only 10 refer to the company. The remaining CDC refer to other companies, for which DM Technology provides assistance on biometric detection devices” (minutes cited, p. 3);

“the biometric data of the data subjects resides exclusively on the device and is not accessible remotely, nor locally, except for deletion, which can only be performed directly on the device” (minutes cited, p. 3);

“probably on many installed devices the default password has been maintained, present on the device located in Ardea. For this type of credential, no validity expiration is provided, which is instead provided for Junior Web accounts” (minutes cited, p. 3);

“the device is equipped with a special algorithm “Bionano” to encrypt biometric data in a non-reversible manner” (minutes cited, p. 4).

On May 30, 2023, inspection checks were also carried out at Unica s.r.l.s. and DM Technology s.r.l..

3. The initiation of the procedure for the adoption of corrective measures and the Company's deductions.

On September 13, 2023, the Office notified Blue Work s.r.l. of the alleged violations of the Regulation found, pursuant to Article 166, paragraph 5, of the Code, with reference to Articles 5, paragraph 1, letter a), 9, 13, 28, 30, 32, and 35 of the Regulation.

The Company did not submit any defensive writings.

****4. The outcome of the investigation and the procedure for the adoption of corrective and sanctioning measures.****

****4.1 Outcome of the investigation. Violation of Article 5, paragraph 1, letter a) and 9 of the Regulation in relation to the processing of data of its employees.****

As a result of the examination of the statements made to the Authority during the procedure as well as the documentation acquired, it appears that Blue Work s.r.l. (hereinafter, the Company), as the data controller, has carried out certain processing operations concerning its employees that are not compliant with the regulations on personal data protection.

In this regard, it is highlighted that, unless the act constitutes a more serious offense, anyone who, in a proceeding before the Guarantor, falsely declares or certifies news or circumstances or produces false acts or documents is liable under Article 168 of the Code “Falsehood in declarations to the Guarantor and interruption of the execution of the tasks or the exercise of the powers of the Guarantor.”

On the merits, following the investigative activity, it was established that the Company has used a biometric system based on facial recognition aimed at detecting the presence of employees at work, starting from December 2021 (the date on which the system was activated, according to the statements made by L'Igiene Urbana Evolution s.r.l., without, however, specifying the period during which the registration of employees in the system took place, with consequent data processing) until January 2023, the date on which the system was deactivated following the initiation of the verification activity by the Authority.

The Company, contrary to what was declared, appears to have processed data of its employees as the data controller since it provided the list of workers to carry out the detection of their presence at the

Ardea construction site and had access to the Junior Web database for attendance control through biometric detection.

This is considering the definition of data controller in the personal data protection system (Article 4, no. 7) of the Regulation: “the person [...] legal entity [...] that, individually or together with others, determines the purposes and means of the processing of personal data.”

The processing concerned the 13 employees working at the Ardea construction site (see minutes of 16/2/2023, p. 3 and Annex 3).

The Company has not clarified the specific reasons for adopting a system based on biometric technology for detecting employee attendance.

Preliminarily, it is noted that, as clarified by the Authority, there is processing of biometric data both in the registration phase (so-called enrolment), consisting of the acquisition of the biometric characteristics of the data subject (facial characteristics, in this case; see points 6.1 and 6.2 of Annex A to the Guarantor's provision of November 12, 2014, no. 513, at www.garanteprivacy.it, doc. web no. 3556992), and in the biometric recognition phase, at the time of attendance detection (see also point 6.3 of Annex A to the aforementioned provision).

Therefore, even in the case of extraction of the so-called template, there is processing of biometric data, with consequent application of the specific regulations provided by the legal system.

In this regard, based on the regulations on personal data protection, the processing of biometric data (generally prohibited under Article 9, paragraph 1 of the Regulation) is permitted only if one of the conditions indicated in Article 9, paragraph 2 of the Regulation is met and, with regard to processing carried out in the workplace, only when the processing is “necessary for fulfilling the obligations and exercising the specific rights of the data controller or the data subject in the field of labor law and social security and social protection, to the extent that it is authorized by Union law or the laws of the Member States or by a collective agreement under the laws of the Member States, in the presence of appropriate safeguards for the fundamental rights and interests of the data subject” (Article 9, paragraph 2, letter b), of the Regulation; see also: Article 88, paragraph 1 and recitals 51-53 of the Regulation).

Furthermore, the employer is required to apply the general principles of processing, particularly those of lawfulness, fairness, and transparency, minimization, integrity, and confidentiality of data (Article 5, paragraph 1, letters a), c) and f) of the Regulation).

In application of these provisions, although in the workplace the purposes of detecting employee attendance and verifying compliance with working hours may fall within the scope of Article 9, paragraph 2, letter b) of the Regulation, the processing of biometric data is permitted only “to the extent that it is authorized by Union law or the laws of the Member States [...] in the presence of appropriate safeguards for the fundamental rights and interests of the data subject” (Article 9, paragraph 2, letter b), and recitals 51-53 of the Regulation). Also considering what is provided for in Article 2-septies of the Code (Guarantee measures for the processing of genetic, biometric, and health-related data), under which the aforementioned processing may be carried out in accordance with the guarantee measures established by the Guarantor (pursuant to Article 9, paragraph 4, of the Regulation), the current legal framework does not allow the processing of biometric data of employees for the purpose of detecting attendance at work. This has been reiterated by the Guarantor with provisions no. 369 of November 10, 2022 (doc. web n. 9832838) and n. 16 of January 14, 2021 (doc. web n. 9542071).

The use of biometric data in the context of the ordinary management of the employment relationship (such as the activity of attendance tracking) is not compliant with the principles of minimization and proportionality of processing (art. 5, par. 1, lett. c) of the Regulation).

The Company, in order to account for the actual hours worked and to verify the presence of workers at the workplace, could have adopted measures useful for this purpose but less invasive of the rights of the data subjects (e.g., automatic checks via badges, direct verifications, etc.).

The proportionality assessment of the processing of biometric data consisting of facial recognition should also have taken into account the risks to the rights and freedoms of the data subjects associated with the use of such specific biometric technology, as recognized both by national legislation and in the European context (see d.l. 10/5/2023, n. 51, converted into law 3/7/2023, n. 87,

which with art. 8-ter extended until December 31, 2025, the suspension of the installation and use of video surveillance systems with facial recognition “in public places or open to the public, by public authorities or private entities,” in order to “regulate in accordance with the admissibility requirements, conditions, and guarantees related to the use of facial recognition systems in compliance with the principle of proportionality provided for by Article 52 of the Charter of Fundamental Rights of the European Union”; see also: European Data Protection Board, Guidelines 05/2022 on the use of facial recognition technology in the area of law enforcement, adopted on 26/7/2023, specifically points 17, 34, and 35 on the risks of facial recognition; Guidelines 3/2019 on the processing of personal data through video devices, adopted on January 29, 2020, specifically points 4 and 73; also see the Provision of February 10, 2022, n. 50, doc. web n. 9751362, adopted, albeit in a different context, regarding facial recognition).

Based on the aforementioned reasons, the processing of biometric data of its employees carried out by the Company is therefore found to have been conducted in the absence of an appropriate legal basis, in violation of Articles 5, par. 1, lett. a) and 9 of the Regulation.

4.2 Violation of Articles 5, par. 1, lett. a) and 9 of the Regulation in relation to the processing of data of employees of other companies.

Following access to the system and examination of the documentation acquired in the records, it also emerged that the list of employees to be subjected to presence verification through the biometric detection system is unique for the three companies operating at the Ardea construction site (in addition to the Company, also Igiene Urbana Evolution s.r.l. and Airone società consortile a r.l.), which provided the list of their respective employees to be verified.

In fact, both the paper signature sheet and the attendance register extracted from the Junior Web application and the data exported from the Anviz device acquired in the records present a shared list among the three companies where next to each name is indicated the company of belonging (see inspection report 19/1/2023, Annex 1 [Attendance Register January 2023 - report generated by Junior Web and signature sheets of 19/1/2023], 2 [tables with data export extracted from the device] and 3 [screenshot access to data contained in the device]).

From the documentation acquired during the inspection, it also emerged that the treatments overall carried out by the system also concerned employees of Unica s.r.l.s. and DM Technology s.r.l. (see inspection report 27.1.2023, Annex 6, “Table export total employees,” containing the list of clock-ins made as of 27/1/2023 related to the employees of Igiene Urbana Evolution s.r.l., Airone società consortile a r.l., Blue Work s.r.l., Unica s.r.l.s., and DM Technology).

Therefore, the Company also processed data related to the presence of employees of Igiene Urbana Evolution s.r.l., Airone società consortile a r.l., Unica s.r.l.s., and DM Technology s.r.l., taken from the biometric attendance detection system, likewise in the absence of any applicable legal basis among those provided for by art. 9, par. 2 of the Regulation.

The described treatments therefore occurred in violation of Articles 5, par. 1, lett. a) and 9 of the Regulation.

4.3 Violation of Articles 5, par. 1, lett. a) and 13 of the Regulation.

The Authority has repeatedly emphasized that the employer, in application of the principle of transparency, has the obligation to inform its employees and collaborators, in any case, about the essential characteristics of the data processing carried out in the context of the employment relationship as well as the tools through which the processing is carried out in accordance with what is specifically indicated by art. 13 of the Regulation.

This also considering that, within the employment relationship, the obligation to inform the employee is also an expression of the duty of fairness (art. 5, par. 1, lett. a) of the Regulation).

In this case, however, it emerged that the Company failed to provide any information on the characteristics of the processing of biometric data through facial recognition (see report 16/2/2023, p. 4, where the Company stated that it had provided information orally).

The Company did not provide any evidence of the release of the information to the data subjects, considering that according to art. 12, par. 1 of the Regulation “the information is provided in writing or through

other means, including, where appropriate, electronic means. If requested by the data subject, the information may be provided orally, provided that the identity of the data subject is verified by other means.”

This has resulted in a violation of Articles 5, paragraph 1, letter a) and 13 of the Regulation.

4.4 Violation of Article 28 of the Regulation.

According to the provisions of the Regulation, the data controller, in the context of implementing the technical and organizational measures that are their responsibility, also from a security perspective (Articles 24 and 32 of the Regulation), may engage a processor to carry out certain processing activities, to which they provide specific instructions (see Recital 81 of the Regulation).

In this case, the controller “only uses processors that provide sufficient guarantees to implement [the aforementioned measures] in such a way that the processing meets the requirements of the Regulation and ensures the protection of the rights of data subjects” (Article 28, paragraph 1, of the Regulation).

Pursuant to the aforementioned Article 28 of the Regulation, the controller may entrust processing to external parties, adequately regulating the relationship through a contract (or another legal act) and providing instructions regarding the main characteristics of the processing. The processor is therefore authorized to process the data of the data subjects “only on the documented instructions of the controller” (Article 28, paragraph 3, letter a), of the Regulation) and within the specific limits defined by the data controller.

The Company, while utilizing the services provided by the Marzella and Puccianti partnership for the management of employee payroll (see inspection report dated 16/2/2023, p. 5) and DM Technology s.r.l. regarding the management of the Junior Web application, carried out in ways that allowed access to employee data related to attendance tracking and its processing (see inspection report dated 30/5/2023 at DM Technology s.r.l., p. 3), did not designate the aforementioned parties as processors, as instead required by Article 28 of the Regulation (see report dated 16/2/2023, p. 5).

For the above reasons, the Company has violated Article 28 of the Regulation.

4.5 Violation of Article 35 of the Regulation.

According to Article 35 of the Regulation, in relation to processing that involves “the use of new technologies, considering the nature, scope, context, and purposes of the processing, [such as] to present a high risk to the rights and freedoms of natural persons,” the controller is required to carry out a data protection impact assessment before the processing activities begin.

In this regard, the Guidelines WP 248rev.01 of 4.4.2017 (“Guidelines on Data Protection Impact Assessment and Determining Whether Processing ‘Could Result in a High Risk’ for the Purposes of Regulation (EU) 2016/679”) identify, among the criteria under which the data controller is required to carry out an impact assessment, relevant in this case, the processing of “sensitive data,” which includes biometric data (see Chapter III, B, no. 4), processing carried out concerning “vulnerable” data subjects (e.g., as part of an employment relationship; see Chapter III, B, no. 7), as well as processing that realizes an “innovative use or [the] application of new technological or organizational solutions” (see Chapter III, B, no. 8).

Further indications were provided in this regard by the Authority's provision of 11 October 2018, no. 467 (“List of Types of Processing Subject to the Requirement of a Data Protection Impact Assessment Pursuant to Article 35, paragraph 4, of Regulation (EU) No. 2016/679,” in G.U., S. G. no. 269 of 19.11.2018, specifically nos. 6 and 7), although referring to cross-border processing.

Despite having adopted a biometric authentication system for the purpose of tracking the attendance of its employees, the Company did not carry out an impact assessment before the commencement of the processing activities, thus violating, as stated above, Article 35, paragraph 1 of the Regulation.

4.6 Violation of Articles 30 and 32 of the Regulation.

According to Article 30 of the Regulation, within the record of processing activities carried out by the controller, the latter, under their own responsibility, is required to indicate the categories of personal data being processed (Article 30, paragraph 1, letter c) of the Regulation).

As clarified by the Authority, the record constitutes one of the main elements of accountability of the

controller, as it is a tool suitable for providing an updated overview of the ongoing processing within their organization, essential for any risk assessment or analysis activity and thus preliminary to such activities.

The record must be in written form, including electronic form, and must be presented upon request to the Authority (see in this regard the FAQs on the record of processing activities, made available by the Authority on its institutional website in October 2018, doc. web no. 9047529).

In the specific case, it has also emerged that the Company did not prepare the record of processing operations and therefore did not register the processing of biometric data therein (see report dated 16/2/2023, p. 5).

This is in violation of what is established by Article 30 of the Regulation.

In the course of the inspection activity, access to the Anviz terminal used for clocking in via facial recognition revealed that the authentication credentials with Admin profile were the same as those listed in the user manual (userID, so-called default ID, "0", password "12345") and had never been modified since the system's use, thus from December 2021. This allowed access to the information stored on the terminal based on a simple consultation of the user manual of the device, easily available online, and in any case based on the input of the first five cardinal numbers in ascending order (see Annex 2, inspection report 19/1/2023, containing photographic documentation of the accesses made, spec. IMG_20230119_103040943.jpg). Such conduct does not comply with the provisions of Article 32 of the Regulation, according to which the data controller is required to implement "appropriate technical and organizational measures to ensure a level of security appropriate to the risk," ensuring "on a permanent basis the confidentiality" of the personal data processed, in light of "the state of the art and the costs of implementation, as well as the nature, subject matter, context, and purposes of the processing, as well as the risk of varying probability and severity for the rights and freedoms of natural persons." The Company has therefore also violated Article 32 of the Regulation.

5. Conclusions: declaration of unlawfulness of the processing. Corrective measures pursuant to Article 58, paragraph 2, of the Regulation. For the reasons stated above, the Authority believes that the statements, documentation, and reconstructions provided by the data controller during the investigation do not allow for overcoming the observations notified by the Office with the initiation of the procedure and are therefore unsuitable to allow the archiving of this procedure, nor do any of the cases provided for by Article 11 of the Garante Regulation No. 1/2019 apply. The processing of personal data carried out by the Company, specifically the processing of biometric data (facial recognition) related to its employees for attendance detection purposes, is indeed unlawful, as stated above, in relation to Articles 5, paragraph 1, letter a), 9, 13, 28, 30, 32, and 35 of the Regulation. The violation established in the terms of the motivation cannot be considered "minor," taking into account the nature of the violation that concerned the general principles and the conditions of lawfulness of the processing of special data as well as the severity of the violation itself, the degree of responsibility, and the manner in which the supervisory authority became aware of the violation (see Recital 148 of the Regulation). The Authority acknowledges that, according to what was declared under its own responsibility, the Company has suspended the processing operations of biometric data after the initiation of the inspection activity (see inspection report 16/2/2023). Therefore, in light of the corrective powers attributed by Article 58, paragraph 2 of the Regulation, it is ordered to delete the collected biometric data (Article 58, paragraph 2, letter g) of the Regulation) and an administrative pecuniary sanction is imposed pursuant to Article 83 of the Regulation, commensurate with the circumstances of the specific case (Article 58, paragraph 2, letter i) of the Regulation).

**6. Adoption of the injunction order for the application of the administrative pecuniary sanction and accessory sanctions (Articles 58, paragraph 2, letter i), and 83 of the Regulation; Article 166, paragraph 7, of the Code). At the conclusion of the procedure, it appears that Blue Work s.r.l. has violated Articles 5, paragraph 1, letter a), 9, 13, 28, 30, 32, and 35 of the Regulation. For the violation of the aforementioned provisions, the application of the administrative pecuniary sanction provided for by Article 83, paragraph 4, letter a) and paragraph 5, letters a) and b) of the Regulation is foreseen, through the adoption of an injunction order (Article 18, Law 24/11/1981, No. 689). It is deemed necessary to apply paragraph 3 of Article 83 of the Regulation where it provides that "If, in relation to

the same processing or related processing, a data controller [...] violates, with intent or negligence, various provisions of this regulation, the total amount of the administrative pecuniary sanction does not exceed the amount specified for the most serious violation,” the total amount of the sanction is calculated so as not to exceed the maximum penalty provided for by the same Article 83, paragraph 5. With reference to the elements listed in Article 83, paragraph 2 of the Regulation for the purpose of applying the administrative pecuniary sanction and its quantification, considering that the sanction must be “in each individual case [be] effective, proportionate, and dissuasive” (Article 83, paragraph 1 of the Regulation), it is represented that, in the specific case, the following circumstances have been considered: a) in relation to the nature, gravity, and duration of the violation, the nature of the violation concerning the general principles and the conditions of lawfulness of the processing and the processing of special biometric data using facial recognition technology has been considered against the Company; b) the duration of the violation, which lasted for more than a year, has also been considered against the Company; c) with reference to the intentional or negligent nature of the violation and the degree of responsibility of the**

****Holder****, the conduct of the Company has been taken into consideration, as well as the degree of responsibility of the same, which did not comply with the regulations regarding data protection in relation to multiple provisions;

d) in favor of the Company, account has been taken of the cooperation with the Supervisory Authority and the decision to suspend processing activities after the start of inspection activities. It is also believed that the following factors are relevant in this specific case, considering the aforementioned principles of effectiveness, proportionality, and deterrence to which the Authority must adhere in determining the amount of the sanction (art. 83, par. 1, of the Regulation), primarily the economic conditions of the offender, determined based on the revenues achieved by the Company with reference to the abbreviated financial statements for the year 2022. Lastly, account is taken of the amount of sanctions imposed in similar cases.

In light of the above elements and the evaluations made, it is deemed appropriate, in this specific case, to apply to Blue Work s.r.l. the administrative sanction of payment of an amount equal to €6,000 (six thousand).

In this context, it is also considered, taking into account the type of violations established that concerned the general principles and conditions of lawfulness of processing, that pursuant to art. 166, paragraph 7, of the Code and art. 16, paragraph 1, of the Regulation of the Guarantor no. 1/2019, the publication of this provision on the Guarantor's website should proceed.

It is also believed that the conditions referred to in art. 17 of Regulation no. 1/2019 are met.

****ALL OF THE ABOVE CONSIDERED, THE GUARANTOR****

notes the unlawfulness of the processing carried out by Blue Work s.r.l., represented by its legal representative, with registered office at Via Giustiniano, 30 Latina (LT), C.F. 02678320595, pursuant to art. 143 of the Code,

for the violation of arts. 5, par. 1, lett. a), 9, 13, 28, 30, 32, and 35 of the Regulation;

****ORDERS****

pursuant to art. 58, par. 2, lett. g) of the Regulation to Blue Work s.r.l., to delete the collected biometric data;

****ORDERS****

pursuant to art. 58, par. 2, lett. i) of the Regulation to Blue Work s.r.l., to pay the sum of €6,000 (six thousand) as an administrative pecuniary sanction for the violations indicated in this provision;

****COMMANDS****

therefore the same Company to pay the aforementioned sum of €6,000 (six thousand), according to the methods indicated in the annex, within 30 days from the notification of this provision, under penalty of the adoption of subsequent executive acts pursuant to art. 27 of law no. 689/1981. It is reminded that the offender retains the right to settle the dispute by paying – always according to the methods indicated in the annex - an amount equal to half of the imposed sanction, within the term referred to in art. 10, par. 3, of Legislative Decree no. 150 of 1.9.2011 provided for the submission of the appeal as indicated below (art. 166, par. 8, of the Code);

****DISPOSES****

the publication of this provision on the Guarantor's website pursuant to art. 166, par. 7, of the Code and art. 16, par. 1, of the Regulation of the Guarantor no. 1/2019, and believes that the conditions referred to in art. 17 of Regulation no. 1/2019 are met.

Requests Blue Work s.r.l. to communicate what initiatives have been undertaken in order to delete the collected biometric data, and to provide adequately documented feedback pursuant to art. 157 of the Code, within 90 days from the date of notification of this provision; any failure to respond may result in the application of the administrative sanction provided for in art. 83, par. 5, lett. e) of the Regulation.

Pursuant to art. 78 of the Regulation, as well as arts. 152 of the Code and 10 of Legislative Decree no. 150/2011, an appeal against this provision may be made to the ordinary judicial authority, with an application filed with the ordinary court of the place identified in the same art. 10, within thirty days from the date of communication of the provision itself, or sixty days if the appellant resides abroad.

Rome, February 22, 2024

****THE PRESIDENT****

Stanzione

****THE REPORTER****

Cerrina Feroni

****THE SECRETARY GENERAL****

Mattei